

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Justin Huang	Team: Squad #04	CCRB Case #: 201901694	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 02/25/2019 4:09 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/11/2021	Precinct: 88		
Date/Time CV Reported Mon, 02/25/2019 1:00 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 02/25/2019 1:00 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM George Rowen	17129	961208	088 PCT
2. POF Lisa Santasieri	18596	958585	088 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Raymond Ng	18218	958448	088 PCT
2. POM Maxim Paul	17531	959051	088 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM George Rowen	Abuse: Police officer George Rowen threatened to arrest § 87(2)(b)	A . Unsubstantiated
B . POM George Rowen	Discourtesy: Police Officer George Rowen spoke discourteously to § 87(2)(b)	B . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On February 25, 2019, § 87(2)(b) filed this complaint with the CCRB over the phone (**BR 07**).

On February 25th, 2019, at approximately 3:00AM, § 87(2)(b) was in his home, located at § 87(2)(b), in Brooklyn. Police Officer George Rowen, Police Officer Lisa Santasieri, Police Officer Raymond Ng, and Police Officer Maxim Paul, all from the 88th Precinct, arrived at § 87(2)(b) apartment and told § 87(2)(b) that he had filed a false § 87(2)(b). PO Rowen allegedly called § 87(2)(b) a “jerk” and a “scumbag” (**Allegation A: Discourtesy, unsubstantiated**). PO Rowen later allegedly threatened to arrest § 87(2)(b) (**Allegation B: Abuse of Authority, unsubstantiated**).

§ 87(2)(g), § 87(4-b)

No summons or arrests were made as a result of this incident.

The CCRB obtained footage of the incident from security cameras located in the hallway of 40 Putnam Avenue (**BR 01**). There was no BWC footage of the incident (BR 05).

Findings and Recommendations

Allegation A – Discourtesy: Police Officer George Rowen spoke discourteously to § 87(2)(b)

It is undisputed that PO Rowen and § 87(2)(b) had a verbal exchange in § 87(2)(b) (**BR 01**).

§ 87(2)(b) (**BR 02**) stated that he awoke to a loud banging coming from his front door. § 87(2)(b) opened the door and observed PO Rowen and PO Santasieri standing outside. PO Rowen immediately screamed at § 87(2)(b) and accused him of filing a false § 87(2)(b). PO Rowen also called him a “jerk” and a “scum bag.”

An updated request for the event summary pertaining to this incident was sent on March 10, 2020. It will be added to the case file upon receipt (**BR 12**).

PO Rowen (**BR 03**) stated that he checked the phone number that called 911 to file the § 87(2)(b), and recognized the number as belonging to § 87(2)(b)'s girlfriend. PO Rowen knocked on § 87(2)(b)'s door since he knew she lived with § 87(2)(b). § 87(2)(b) opened the door and PO Rowen asked him if he had called 911. § 87(2)(b) told PO Rowen that he did not call 911. PO Rowen told § 87(2)(b) that his statement was false. § 87(2)(b) became angry and cursed at PO Rowen and called him racist. § 87(2)(b) then slammed the door in PO Rowen's face. PO Rowen denied calling § 87(2)(b) a “jerk” and a “scum bag.” PO Santasieri (**BR 04**) stated that she did not hear PO Rowen refer to § 87(2)(b) as a “jerk” or a “scum bag,” nor did she hear any other officer do so. PO Ng (**BR 10**) and PO Paul (**BR 11**) did not remember this incident.

The security footage from the building (**BR 01**) shows PO Rowen, PO Santasieri, PO Paul, and PO Ng walking out of the neighbor's apartment and knocking on § 87(2)(b)'s apartment. There is a verbal exchange between PO Rowen and § 87(2)(b) (who is presumably standing inside his apartment and not seen by the hallway camera), but there is no audio recorded of the conversation.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B – Abuse of Authority: Police Officer George Rowen threatened to arrest § 87(2)(b)

§ 87(2)(b) (**BR 02**) stated that after speaking with PO Rowen at his door, he exited his apartment and went downstairs to get a cigarette from the deli across the street. § 87(2)(b) saw PO Rowen and PO Santasieri in the lobby. PO Rowen said, "I am calling your number right now. Why don't you pick up the phone, pick up the phone, so I could arrest you for this false accusation." § 87(2)(b) returned from the deli and encountered PO Rowen in the lobby. PO Rowen told § 87(2)(b) "I will arrest you for a false accusation. Pick up your phone."

PO Rowen (**BR 03**) stated that he informed § 87(2)(b) that if he continued to make false 911 calls, specifically of that nature, and someone got hurt in the process of officers getting to the location, he could be arrested. PO Rowen explained that all officers in a command would rush to the specific location of incident § 87(2)(b), which could put drivers and pedestrians at risk. PO Rowen denied stating "I will arrest you for a false accusation."

PO Santasieri (**BR 04**) stated that after the officers left the location, PO Rowen informed PO Santasieri that he told § 87(2)(b) that if he continued to make false 911 calls, he "would lock him up" for reporting false crimes. PO Santasieri did not recall how PO Rowen determined § 87(2)(b) had made the false 911 call. PO Santasieri did not recall if she heard PO Rowen specifically say to § 87(2)(b) "Pick up the phone so I can arrest you for this false accusation."

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

_____.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 08**).
- PO Rowen has been a member of service for four years and has been subject to one CCRB complaint and one allegation, which was not substantiated.
 - § 87(2)(g)
- PO Santasieri has been a member of service for four years and has been a subject to one CCRB complaint and one allegation, which was not substantiated.
 - § 87(2)(g)

Mediation, Civil and Criminal Histories

- On February 28th, 2019, this case was sent to mediation and on June 26th, 2019 the case was returned to investigation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- A notice of claim has been sent to the New York City Office of Comptroller and will be added to the case file upon receipt.

Squad No.: _____

Investigator: _____

Signature _____ Print Title & Name _____ Date _____

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date